

IMTA Contract No. 7

*International Machinery Traders Association — Standard Agreement for the
Sale of Used & Refurbished Industrial Machinery — CIF / FOB / EXW Terms —
2025 Edition*

Governing Law: Laws of England • Arbitration: IMTA Arbitration Rules No. 41

Clause 1 — Parties

This Agreement is made between the **Seller** (the party offering machinery for sale — being a dealer, original equipment manufacturer, auction house, or end-user disposing of surplus assets) and the **Buyer** (the party purchasing the machinery — being a contractor, manufacturer, mining operator, rental fleet, government body, or reseller). The Seller and Buyer may appoint a **Service Provider** (transport carrier, rigging specialist, inspector, or customs broker) to facilitate inspection, dismantling, and delivery of the Goods.

Clause 2 — Goods

The Goods comprise industrial machinery identified by category, brand, model, and condition. Recognised machinery categories under this Agreement are:

Category	Typical Equipment
Construction	Excavators, wheel loaders, bulldozers, cranes
Agriculture	Tractors, combine harvesters, balers
Manufacturing / CNC	CNC mills, lathes, machining centres, press brakes
Material	Forklifts, reach stackers, conveyors

Handling

Mining Haul trucks, rock breakers, drilling rigs

Power
Generation Diesel gensets, turbines, transformers

Forestry Feller bunchers, log loaders, chippers

Oil & Gas Pumps, compressors, wellhead equipment

Common brands transacted include Caterpillar, Komatsu, John Deere, Volvo, Hitachi, JCB, Liebherr, Doosan, and Mitsubishi.

Clause 3 — Condition Designation

Each unit shall be sold under one of the following condition designations, as defined in the IMTA Equipment Condition Grading Standard:

Designation	Meaning
New	Unused, current production, full manufacturer warranty
Used	Operational, sold as-is with disclosed hours and wear
Refurbished	Inspected, repaired, and certified to working specification
Parts Only	Non-operational; sold for components or scrap

Clause 4 — Price and Payment

The Price is expressed per unit in United States Dollars (USD). Payment shall be by irrevocable letter of credit or escrow release against inspection

certificate. Typical per-unit value bands are: under 25k, 25k–100k, 100k–500k, 500k–2M, and 2M and above.

Clause 5 — Delivery Terms

Delivery shall be on EXW, FOB, or CIF terms per INCOTERMS 2020. The Seller shall make the unit available for pre-shipment inspection. Cross-border movements require a commercial invoice, packing list, and where applicable a certificate of origin and customs declaration.

Clause 6 — Inspection and Warranties

The Buyer is entitled to appoint an independent inspector to verify operating hours, structural integrity, and compliance with the stated condition designation. For Refurbished units the Seller shall provide a certificate of refurbishment.

Clause 7 — Compliance

Machinery shall, where applicable, conform to ISO 9001 quality management, CE Marking (EU), OSHA workplace-safety requirements (US), and EPA Tier 4 emissions standards for diesel-powered equipment.

Clause 8 — Origin Countries

The Goods may originate from the United States, Canada, Mexico, Germany, Italy, Japan, China, South Korea, India, or Brazil.